

Samundar Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 February 2020 · Writ-C No. 7265 of 2020 · **Writ disposed; petitioner relegated to Executive Engineer under clause 6.5; four-week stay of coercive recovery.**

HEADNOTE

A consumer challenging a disconnection notice and a bill that includes previous arrears as illegal is not entitled to a writ-court decision of that billing dispute. The proper course is a representation to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer approaches within one week, the claim is to be considered and an order passed within three weeks in accordance with law; coercive recovery under the notice is stayed for four weeks, subject to that decision.

FACTUAL SUMMARY

Samundar Singh, a consumer of U.P. Power Corporation Ltd., challenged a disconnection notice dated 6 February 2020 and a bill for 20 November 2019 to 22 December 2019 which included previous arrears of Rs. 12,71,647. He contended that the bill was illegal because the authorities had not decided his claim as directed by this Court on 20 April 2006 in Writ Petition No. 21836 of 2006, and that only a disconnection notice had been issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — representation to Executive Engineer

HOLDING

A writ challenging a disconnection notice and a disputed bill including previous arrears is disposed of by relegating the consumer to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. If the consumer approaches the Executive Engineer within one week, the claim is to be considered and an appropriate order passed within three weeks in accordance with law. Coercive recovery of the amount in the disconnection notice is stayed for four weeks, subject to the Executive Engineer's decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined to decide the disputed bill and disconnection notice on the writ and sent the consumer to the Executive Engineer under clause 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The challenge was to a bill including previous arrears of Rs. 12,71,647 and a disconnection notice; the statutory 6.5 representation was treated as the proper remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE BILL FOR 20.11.2019 TO 22.12.2019 INCLUDING PREVIOUS ARREARS OF RS. 12,71,647

Left to the Executive Engineer under clause 6.5. ¶ 1

NOT DECIDED — VALIDITY OF THE DISCONNECTION NOTICE DATED 06.02.2020

Not quashed; coercive recovery stayed for four weeks subject to the Executive Engineer's decision. ¶ 1

NOT DECIDED — WHETHER THE AUTHORITIES HAD COMPLIED WITH THE ORDER DATED 20.04.2006 IN WRIT PETITION NO. 21836 OF 2006

¶ 1

